

You need not to seek further examples for you to follow, but rest [828] and stay your self upon the vertues of your worthy Grand-father : when he sate Chief Justice in the Common Pleas, you shall not find he ever said vauntingly, That he would make latitatus latitare. When he did sit Chief Justice in this place, he contained himself within the word of the Writ to be the Chief Justice as the King called him, ad placita coram nobis tenenda, but did not arrogate or aspire to the high title of capitalis justitia Angliæ, or capitalis justiciarius Angliæ, an Office and Title which Hugh de Burgo and some few others held in the time of the Barons Wars, and whilst the fury thereof was not well ceased. He devised not any new construction of Laws against Commissioners and Judges of Sewers, nor to draw them into the danger of Præmunire : and whilst they were in this Court disputing of tricks and moot points concerning taxes, and making new gutters or walls, to suffer a great part of the Realm to be surrounded and overflown ; for the winds nor the Sea could not be stayed with such new constructions and moot points. He never strained the Statute of 27 Ed. 3. Cap. 1. to reach to the Chancery, and to bring that Court and the Ministers thereof, and the Subjects that sought Justice there, to be in danger of Præmunire ; an absurd and an inept new construction of that old Statute ; you know whose word it is : and how vain it hath appeared upon full examination thereof, you do also know very well.

He never made teste Edwardo Mountague to jumble with teste meipso, but knew that the Kings Writ, teste meipso, was his warrant to sit in this place.

He doubted not, but if the King by his Writ under the Great Seal, commanded the Judges that they should not proceed Rege inconsulto, then they were dutifully to obey, and to consult with the King not in this Court but in another, that is, the Court of Chancery.

He challenged not power for the Judges of this Court to correct all misdemeanors as well extrajudicial as judicial, nor to have power to judge Statutes and Acts of Parliament to be void, if they conceived them to be against common right and reason ; but left the King and the Parliament to judge what was common right and reason. I speak not of impossibilities or direct repugnances.

These Examples and many more you may observe in the actions of your worthy Grand-father. Wherefore I will say no more, but set God before your eyes a Jove principium. And so often as you shall sit down in this place remember your Grand-father, and study and endeavour to imitate his Vertues, and decline from those Vices which he hated and eschewed.

Remember also the removing and putting down of your late Predecessor, and by whom, which I often remember unto you, that [829] is, by the Great King of Great Brittain, whose great Wisdom and Royal Vertues and Religious Care, for the Weal of his Subjects, and for the due administration of Justice, can never be forgotten, but will remain admirable to all posterity. Endeavour to serve him, and the Crown, and Common-Wealth diligently and faithfully, and undergo this great Office with alacrity and chearfulness. And because this place hath stood hovering all this Term, it may be matters have been put off, and not expedited as they should ; if there have been any stay or delay, supply it now with your diligence, and alwayes comfort your self with this, that sithe the Kings Majesty hath enabled you, who shall or can disable you.

1115. SIR HENRY MOUNTAGUES SPEECH.

My most Honourable Lord, It was my word when the King was graciously pleased to call me to be a Serjeant, Deo, Regi, & Legi. And I must acknowledge the great favours I have received from him ; for when I do consider my desert, I wonder what I am, that he should exalt me to this high place. Although my Brother, whom your Lordship hath been pleased to remember, is one that is near the King, yet he never solicited in my behalf in this matter ; neither did I know that I should be the man, whom it should please the King to advance unto this high place, until such time as I received the Warrant from his Majesty. But I find the Wisemens saying true in great